DECISION

Fair Work Act 2009
s.185 - Application for approval of a single-enterprise agreement

Wilson Mining Services Pty Ltd
(AG2026/2556)

MASTERMYNE STRATA CONSOLIDATION NSW ENTERPRISE AGREEMENT 2026

Coal industry

COMMISSIONER SLOAN SYDNEY, 7 OCTOBER 2026

Application for approval of the Mastermyne Strata Consolidation NSW Enterprise Agreement 2026

[1] Wilson Mining Services Pty Ltd has applied for approval of a single enterprise agreement known as the *Mastermyne Strata Consolidation NSW Enterprise Agreement 2026* (**Agreement**). The application is made under section 185 of the *Fair Work Act 2009* (**Act**).

[2] Wilson Mining has provided a written undertaking, a copy of which is attached in Annexure A. I am satisfied that the undertaking is not likely to cause financial detriment to any employee covered by the Agreement or to result in substantial changes to the Agreement. The Commission sought the views of the Mining and Energy Union (**MEU**), which was a bargaining representative for the Agreement, in respect of the undertaking. Pursuant to section 190(3) of the Act, I accept the undertaking. It is taken to be a term of the Agreement.

[3] Clause 20 of the Agreement is titled "Compassionate Leave". On its terms, it is inconsistent with the National Employment Standards as it does not contemplate compassionate leave being available after the stillbirth of a child of the employee or a member of the employee's immediate family or household (section 104(1)(b) of the Act) or after the employee or the employee's spouse or de facto partner has a miscarriage (section 104(1)(c) of the Act). However, clause 3.2 of the Agreement provides that where there is an inconsistency between the Agreement and the NES, and the NES provides a greater benefit, the NES provision will apply. In light of that provision, I am satisfied that the more beneficial entitlements of the NES will prevail over clause 20.

[4] Having regard to the undertaking and the material in the application and accompanying declaration, I am satisfied that each of the requirements of sections 186, 187, 188 and 190 of the Act as are relevant to the application have been met.

[5] The MEU supports approval of the Agreement. It has given notice under section 183 of the Act that it wants the Agreement to cover it. As required by section 201(2) of the Act, I note that the Agreement covers the MEU.

[6] The Agreement is approved. In accordance with section 54 of the Act, the Agreement will operate from 14 October 2026. The nominal expiry date of the Agreement is 7 October 2030.



COMMISSIONER

Printed by authority of the Commonwealth Government Printer

<AE534290 PR815123>

ANNEXURE A

IN THE FAIR WORK COMMISSION
Section 185 – Application for approval of a single enterprise agreement

FWC Matter No: AG2026/2556

Applicant: Wilson Mining Services Pty Ltd

Undertakings – section 190

I, Shaun McKenzie, Group Manager Employee Relations for the Mastermyne Group, have the authority given to me by Wilson Mining Services Pty Ltd to give the following undertaking with respect to Clause 9.8 of the Mastermyne Strata Consolidation NSW Enterprise Agreement 2026 (**the Agreement**).

> In Clause 9.8 of the Agreement reconciliations in each existing or new roster shall be undertaken to assess whether or not the Employee would receive less pay in that roster cycle than they would have received under both the Award and under the Agreement had they not been paid an aggregate hourly rate. For the avoidance of doubt, this will not result in double counting.

This undertaking is provided in response to the issues raised by the Fair Work Commission in the application before the Fair Work Commission.



Signature

02/10/2026

Date

mastermyne
stronger values. greater results.

Note - this agreement is to be read together with an undertaking given by the employer. The undertaking is taken to be a term of the agreement. A Copy of it can be found at the bottom of this agreement.

Wilson Mining
A Mastermyne Company

MASTERMYNE STRATA CONSOLIDATION NSW ENTERPRISE AGREEMENT 2026

TABLE OF CONTENTS

1.0 Contents

1.0 AGREEMENT TITLE 1
2.0 PARTIES TO THE AGREEMENT 1
3.0 INCIDENCE AND APPLICATION 1
4.0 CONTRACT OF EMPLOYMENT 1
5.0 EMPLOYMENT CLASSIFICATIONS 2
6.0 HOURS OF WORK 3
7.0 OVERTIME 4
8.0 STANDBY 5
9.0 WAGES 5
10.0 CRIB TIME 7
11.0 BONUS SCHEME 7
12.0 CHEMICAL ALLOWANCE 7
13.0 TRAINER & ASSESSOR ALLOWANCE 8
14.0 MINING & ENERGY UNION (MEU) ACTIVITIES 8
15.0 DISCIPLINARY PROCEDURE 8
16.0 PERSONAL PROTECTIVE EQUIPMENT/ TOOLS 10
17.0 DISPUTES PROCEDURE 10
18.0 PERSONAL/ CARERS LEAVE 11
19.0 JURY SERVICE 12
20.0 COMPASSIONATE LEAVE 12
21.0 PARENTAL LEAVE 12
22.0 WEEKEND AND PUBLIC HOLIDAY 12
23.0 ANNUAL LEAVE 13
24.0 LONG SERVICE LEAVE 14
25.0 FAMILY AND DOMESTIC VIOLENCE LEAVE 15
26.0 OTHER LEAVE 15
27.0 TRAVEL AND ACCOMMODATION 16
28.0 RETRENCHMENT PAY 18
29.0 WORKERS COMPENSATION 18
30.0 ACCIDENT PAY 18
31.0 SUPERANNUATION 20

32.0 ABSENT WITHOUT LEAVE 20
33.0 OCCUPATIONAL HEALTH AND SAFETY 20
34.0 DRUG AND ALCOHOL POLICY 20
35.0 CONSULTATION 21
36.0 INDIVIDUAL FLEXIBILITY ARRANGEMENT 23
37.0 SIGNATURES TO THE AGREEMENT 25

1.0 AGREEMENT TITLE

This enterprise agreement is the MASTERMYNE STRATA CONSOLIDATION NSW ENTERPRISE AGREEMENT 2026.

2.0 PARTIES TO THE AGREEMENT

The parties to the agreement are: WILSON MINING SERVICES PTY LTD (Hereinafter referred to as "the Company"),

And

ALL employees of the Company defined by Schedule A of the Black Coal Mining Industry Award 2020 (the Employees)

3.0 INCIDENCE AND APPLICATION

3.1 This Enterprise Agreement shall commence on the date prescribed in the approval notice issued by the Fair Work Commission. The nominal expiry date of this Agreement will be 4 years from the date of FWC approval.

This Agreement shall be read in conjunction with the Black Coal Mining Industry Award 2020. Any matter not specifically spelt out in this Agreement shall be covered by the relevant clause of that Award.

3.2 Where there is an inconsistency between this Agreement and the NES, and the NES provides a greater benefit, the NES provision will apply.

3.3 The parties to this Enterprise Agreement undertake to commence negotiations for a replacement agreement six (6) months prior to the expiration of this agreement.

3.4 This Enterprise Agreement will cover work carried out in NSW by Employees engaged primarily on strata consolidation works.

3.5 The parties to this Agreement acknowledge the important role of the Mining & Energy Union at the workplace.

4.0 CONTRACT OF EMPLOYMENT

4.1 All Employees (other than Casuals) of the Company shall be employed on a weekly basis (Sunday to Saturday) and may be required to work at any location of the Company's operation.

4.2 The Company must not terminate an Employee's (other than a casual) employment unless the Employee has been given either a period of notice required in 4.3 or compensation instead of notice equivalent to payment for the notice period or part thereof.

4.3 Required period of notice:

Employee period of continuous service with the Employer	Period of Notice
Not more than one year	1 Week
More than one year but less than three	2 Week
More than three years but less than five years	3 Weeks
More than five years.	4 Weeks

The period of notice is increased by one week if the Employee is over 45 year of age and has completed at least two years of continuous services with the Company.

Fixed-term Employees are to be given one week's notice or payment in lieu and receive all accrued leave entitlements plus the average bonus earned for the period of employment. If the period of employment exceeds 6 months they shall receive in addition to the above, two weeks retrenchment pay up to 12 months employment at which time they would receive 3 weeks' pay for each years' service, if retrenched.

4.4 Full-time, part-time and Fixed term Employees must give notice of termination of employment as per Clause 4.3 above.

4.5 Employees shall perform such work as the Company shall from time to time reasonably require, including work which is incidental and peripheral to the Employee's main task.

An Employee not attending for or not performing such work shall accept loss of payment for the actual time of such non-attendance or not-performance. The Company may direct an Employee to carry out such duties as are within the limits of an Employee's recognised skills, competence and training. In so doing an Employee shall use such tools and equipment as may be required provided that the Employee has been properly training in the use of such tools and equipment.

5.0 EMPLOYMENT CLASSIFICATIONS

Employment shall be full-time, part-time, fixed term or casual.

Part-time;

A Part-time Employee is an Employee who is engaged to work less than an average of 35 Ordinary hours per week, is engaged on a regular pattern of work outlined in writing (the hours and days to be worked and the commencing and finishing times) and receives, on a pro rata basis, equivalent pay and conditions to those of full time Employees who do the same kind of work. A Part-time Employee receives the terms of the Agreement on a proportionate basis based on their average Ordinary hours each week compared to a full-time Employee working an average of 35 Ordinary hours per week.

Fixed Term;

Fixed term means employment for a defined period or project which does not exceed 12 consecutive months and not less than 1 month.

Casual Employment;

To calculate the classification Hourly Rate for a casual (the Casual Base Rate) a casual Employee will be paid a casual loading, In lieu of the paid leave provisions, of 25.5% of their Hourly rate in addition to their specific classification Hourly Rate for the classification

The provisions of Protective Clothing for full-time Employees shall also apply to casual Employees.

In addition, casual employees shall have paid on their behalf employer contributions for superannuation and long service leave.

Termination and retrenchment provisions of the Agreement will not apply to casual Employees.

Safety equipment shall be supplied by the Company.

Casual Employees will be entitled to transition to full-time or fixed term work in line with the NES.

6.0 HOURS OF WORK

6.1 The Ordinary hours of work shall be thirty five (35) hours per week averaged over the roster cycle.

6.2 The Company shall determine underground shift lengths to be worked up to a maximum of 12 hours. Shift lengths greater than 12 hours or where three consecutive nightshift lengths are greater than 10 hours will be subject to fatigue management.

6.3 Change of Shift:

Employees covered by this Agreement may be required to work different shifts from time to time.

12 hours' notice shall be given before a change of scheduled shift start time. If less than 12 hours' notice is given then double time rates will apply for the shift worked. This clause does not apply to unscheduled shifts or if an Employee is required to have ten (10) hours break in accordance with Clause 7.4.

6.4 Shift Loading

Afternoon shift – A start time being on or after 12-midday

Night shift - A start time being on or after 6pm.

Rates for shiftwork are payable at the following rates:

Type of shift	Shift rates
Day shift	Base Rate of Pay
Afternoon and rotating night shifts	
(a) Ordinary hours	(a) 115% of the Base Rate of Pay
(b) Overtime hours 6 or 7 day roster	(b) Overtime penalty rate applied to 115% of the Base Rate of Pay for time worked
(c) All others	(c) Overtime penalty rate applied the Base Rate of Pay for time worked
Permanent night shift	
(a) Ordinary hours	(a) 125% of the Base Rate of Pay
(b) Overtime hours 6 or 7 day roster	(b) Overtime penalty rate applied to 125% of the Base Rate of Pay for time worked
(c) All others	(c) Overtime penalty rate applied to the Base Rate of Pay for time worked

6.5 Shift Cancellation

An Employee shall be paid a minimum of 4 hours at their Hourly rate if the scheduled shift is cancelled and less than 12 hours' notice is given of the cancellation or the Employee is paid for the hours worked up until the time the shift is cancelled.

7.0 OVERTIME

7.1 Monday to Friday 8 single time hours will be paid daily, until 35 Ordinary hours are totalled per week. Any additional hours will be paid at double time.

7.2 It is expected that all Employees be available to work reasonable overtime. An Employee may refuse to work overtime in circumstances where the working of such overtime would result in the employee working hours which are unreasonable having regard to:

I. Any risk to Employee health and safety
II. The Employees personal circumstances including any family responsibility
III. The needs of the Company
IV. The notice (if any) given by the Company of the overtime and by the Employee of their intention of refuse it; and
V. Any other relevant matter

7.3 Where an Employee is assigned to a regular roster and are required by the Company during the rostered week to work an additional shift over and above their regular roster this shift will be paid as an overtime shift.

7.4 Where overtime work is necessary it will be organised so that Employees have at least ten (10) hours off duty between work on successive days. If, on the instructions of the Company an Employee resumes or continues work without having had ten consecutive hours off duty from the finish time of the previous shift (excludes standby time as outlined in clause 8) to the start time of the next shift, the Employee shall be paid at double time during ordinary hours until released from duty.

If an Employee is required to have a ten (10) hour break in accordance with Fatigue Management Procedures, there is no loss of normal pay for any hours the Employee did not attend while having the ten (10) hour break.

7.5 An Employee recalled to work overtime after leaving the workplace shall be paid a minimum of four (4) hours work even if the work to be performed is completed within a shorter period.

7.6 If the period of follow-on overtime the Employee is required to work is more than 1.5 hours the Employee, before starting such overtime, will be allowed thirty (30) minutes crib time without deduction of pay or paid one (1) hour at their Hourly rate.

7.7 No minimum blocks of overtime will be worked. All Employees will be expected to work daily required overtime to finish a cycle of work when requested.

8.0 STANDBY

8.1 An Employee may be requested to be on 12 hour standby during emergencies prior to being advised of a start time. Payment during this period will be at their Hourly rate for the first eight (8) hours and then at double time for additional standby hours within the twelve (12) hour period. However, standby hours performed on weekends and public holidays, will attract the appropriate overtime rates.

8.2 Each 12 hour shift standby period stands alone and the Employee will be notified should additional standby be required.

8.3 To be eligible for standby payment after the completion of a shift, the total number of worked/standby hours cannot exceed the requirements of the Company Fatigue Management Policy.

9.0 WAGES

9.1 The wages described in 9.2 shall apply to all Employees for their ordinary working hours (Hourly rate) and are inclusive rates which absorb all Award allowances except shift loadings, first aid and casual allowance. i.e. No other site allowances are payable.

9.2 Wages:

Title	Hourly Rate First Pay Period after Commencement	Hourly Rate First Pay Period Commencing after 1st Anniversary (3.5% Increase)	Hourly Rate First Pay Period Commencing after 2nd Anniversary (3.5% Increase)	Hourly Rate First Pay Period Commencing after 3rd Anniversary (3.5% Increase)
In-experienced Miner	$33.78	$34.96	$36.18	$37.45
Experienced Miner	$38.66	$40.01	$41.41	$42.86
Appointed Shift Supervisor / Fitter	$42.97	$44.47	$46.03	$47.64
Appointed Supervisor	$44.09	$45.63	$47.23	$48.88
Operations Supervisor	$47.01	$48.66	$50.36	$52.12

Note: An Experienced Miner required to act up into the Appointed Shift Supervisor classification will be paid the Appointed Shift Supervisor classification rate for that shift.

An underground Operator/Fitter will be paid at the Appointed Shift Supervisor rate.

The above wages shall be maintained for the life of the agreement. An Employee classified as an In-Experienced Miner will remain on that classification for a minimum of 12 months.

9.3 All wages are to be paid by electronic funds transfer on a Weekly basis. Employees may nominate the account(s) into which funds are to be transferred.

9.4 Upon termination of employment wages due to an Employee are to be paid on the day of such termination or forwarded by electronic transfer or post to the Employee's last known address within seventy-two (72) hours.

9.5 Employees shall be supplied with all necessary tools as required.

9.6 Employees designated by the Company as First Aid officers shall receive an additional payment of $5.00 per shift. The Company will pay for the cost of the first aid course and time spent undergoing the course, by the designated Employees.

9.7 The Company may at its discretion pay an aggregated hourly rate which will take into consideration all aspects of the work that Employees may be required to perform (including all disabilities, skills, allowances, tools and/or special rates overtime and penalty rates under clauses of this Agreement), for all the rostered working hours work up to 50 hours per week, averaged over 12 weeks. The Company will pay the aggregated hourly rate as a flat amount calculated for the relevant classification, location and roster for the rostered hours worked by the Employee and no penalties or additions to that rate will apply. Minimum aggregate hourly rates will not be less than the rate using the hourly rate applied to the penalty rates in this Agreement, and where applicable the casual loading.

9.8 Where an Employee is paid an aggregated hourly rate in accordance with clause 9.7 the Company will undertake a reconciliation for a cycle in each existing or new roster. The purpose of the

reconciliation is to assess whether or not the Employee would receive less pay in that roster cycle than they would have received under the Award or under the Agreement had they not been paid an aggregate hourly rate. If the reconciliation shows that the Employee would be paid less under the aggregate hourly rate over the roster cycle, the Company will pay to the Employee the higher amount that otherwise would have been paid under the Award or under the Agreement.

9.9 An Employee who is paid an aggregate hourly rate in accordance with clause 9.7 may request the Company to perform such a reconciliation, up to one reconciliation per quarter. If such a request is made, the Company will provide to the requesting Employee detail of the reconciliation in relation to the 12 week period immediately prior to the time the employee requested the reconciliation. If the reconciliation show that the Employee received less pay while being paid the aggregate hourly rate over the relevant period, the Company will pay to the employee the amount of the difference.

9.10 Where an Employee is required to undertake short term emergency work away from their usual place of work or regular roster location that Employee will be compensated while undertaking the short term emergency work no less than they would have been compensated if they had remained at their usual place of work or on their regular roster.

10.0 CRIB TIME

10.1 A period of thirty (30) minutes shall be allowed each shift for the taking of crib for shift lengths up to and including ten (10) hours.

If an Employee works shifts of over 10 hours duration, the Employee will be entitled to a further 30minute break. Such period shall be counted as time worked.

10.2 An Employee shall not be compelled to work for more than five hours without a break for crib. Where an Employee works for more than five hours without a break for crib the Employee shall be paid for such work beyond five hours at double time until a crib break is allowed.

If an Employee has no crib taken after 5 hours, on a shift when they are already being paid double time rates, they will be entitled to an additional hour paid at the overtime rate, if approved by the client in advance.

11.0 BONUS SCHEME

11.1 A bonus shall be negotiated to reward the Company's Employees and to provide an incentive to achieve key performance targets. The full bonus paid will be $500per week. The bonus calculation is based on hours worked up to a maximum of 35 hours for full bonus.

12.0 CHEMICAL ALLOWANCE

Employees will be entitled to a Chemical Allowance for each completed shift worked during a chemical application shift.

A chemical application is defined by the use of PUR, Marisil, Rocsil or Fenoflex injections into strata or goaf, for remedial action.

Chemical Allowances will be paid as follows:

Rocsil cavity fill injections - $200.00 per shift

PUR, Marisil & Fenoflex - $100.00 per shift.

Chemical allowances will not be paid on any work related to any seal construction, including Micon Seals.

13.0 TRAINER & ASSESSOR ALLOWANCE

Employees qualified as trainer/assessors and nominated by the Company will be paid a $40 allowance per shift when performing training and assessing duties as directed by the company.

14.0 MINING & ENERGY UNION (MEU) ACTIVITIES

14.1 Monthly MEU Meetings:

The Company shall provide for a quarterly, two (2) hour paid MEU meeting. The purpose of these meetings is to inform members of MEU activities. In addition, the Company shall provide a paid Annual General Meeting.

14.2 MEU Officials – Onsite Business:

Employees elected as Lodge Officials at the Company will be recognised as representatives of the MEU and will be allowed the necessary time and resources during working hours to carry out their duties. Elected Lodge Officials will be allowed to leave for the purpose of attending MEU meetings and/or Trade Union training, provided such leave is approved in advance by the Company. The Company will pay a maximum total of 15 days payment during the term of the Agreement for this purpose

14.3 Workplace Delegates' Rights

The Workplace Delegates' Rights provision contained in the Black Coal Mining Industry Award will apply and is incorporated by reference into the Agreement.

15.0 DISCIPLINARY PROCEDURE

This procedure is to be followed for all disciplinary cases of breaches of standards or procedures including those relating to safety; unsatisfactory performance or conduct; attendance; environment; harassment; discrimination; or drugs and alcohol. An Employee may choose to be accompanied by an employee representative/support person at any stage of this procedure.

Step 1 – Verbal Warning/ Counselling

Where the Company has a first concern regarding an Employees performance and/or conduct, this step shall be taken;

- An explanation of the concern and the Employees performance and/or conduct expectations of the Company will be given.
- The Employee will be given an opportunity to provide an explanation

- If not reasonable, the Employee will be reminded of this procedure and this is the first warning. At that time the Company will inform the Employee that failure to correct the performance and/or conduct, or any other problems, with the Employee's performance or conduct may lead to further warnings. Such warning will apply for a maximum of twelve (12) months.
- The warning is to be documented and will be confirmed to the Employee in writing.
- All documentation will be retained in the Employee's personnel file.
- During counselling the Employee will be made aware of the standards of improvement in performance and/or conduct that are to be made.

Step 2- Written Warning

If the Company has a second concern about the Employee's performance and/or conduct regarding reasonable standards of performance and/or conduct this step shall be taken:

- The Company will explain its concern with the Employee's performance and/or conduct
- The Employee will be given an opportunity to provide an explanation
- If not reasonable, a written warning will be given referring to the first warning (at step 1) and the opportunity previously given for improvement, if applicable. The written warning will inform the Employee that this is a final warning and that failure to meet the stated standard of improvement or any further instances of poor performance and /or conduct may lead to dismissal.
- The written warning will also provide feedback to the Employee of how to improve performance and/or conduct and will apply for a maximum period of eighteen (18) months.
- All documentation will be retained in the Employee's personnel file.

Step 3 – Dismissal

If the Company has a third concern relating to the Employee's performance and/or conduct the following will apply:

- The Company will explain its concern with the Employee's performance and/or conduct
- The Company will give the Employee an opportunity to provide an explanation
- The Company will consider the explanation
- Based on the explanation, the Company may terminate the employment

While in most cases each step of the procedure will be followed in sequential order, in certain circumstances of serious breach or repeated breach of a similar nature, may result in the Employee going straight to Step 2 of the procedure.

Summary Dismissal not affected- This procedure does not take away the right of the Company to dismiss an Employee without notice for serious misconduct.

Wherever practical, disciplinary meetings or investigations will be conducted during normal working hours. Where due to operational reasons meetings cannot be reasonably conducted during working hours, Employees may be required to attend for a maximum of one (1) hour and be paid at their Hourly rate for attendance.

All Employees that are refused access to a Mine site as a result of disciplinary action will not displace any Employee (including casual employees) working at other locations. The employee will be stood down without pay.

16.0 PERSONAL PROTECTIVE EQUIPMENT/ TOOLS

On commencement of employment, and on an annual basis thereafter, each Employee shall be provided with two sets of outer industrial clothing, one set of protective boots and one winter jacket.

After successful completion of the three (3) month probation period, each new Employee will be issued an additional two sets of outer industrial clothing. Variations in the range of outer clothing will be considered.

Additional issue may be required for damaged clothing and/or equipment upon satisfactory evidence of such damage. Task specific safety equipment such as ear plugs and safety glasses will be provided on a needs basis at no cost to all Employees. Employees shall be provided with all necessary tools as required.

17.0 DISPUTES PROCEDURE

17.1 When a dispute arises either out of a matter arising under this agreement or in relation to the NES, the matter shall in the first instance be discussed between the Employee and the immediate supervisor involved. If the matter remains unresolved:

17.2 It shall be referred, in writing, for discussion between the Employee and the Company's Operational Supervisor representative. If the matter remains unresolved:

17.3 It shall be referred for discussion between the Employee and the nominated senior Company Officials. If the matter remains unresolved:

17.4 Then a forty-eight (48) hours 'cooling off' period will apply before the dispute is referred to Fair Work Commission for conciliation and/or arbitration.

17.5 By agreement between the parties any or all of the aforementioned steps may be by-passed in the interests of speedy resolution of the dispute.

17.6 A party to a dispute may appoint another person, organisation or association to accompany or represent them in relation to a dispute.

17.7 Work Arrangements during a Dispute Resolution;

When a dispute occurs with the Company, work shall proceed under the conditions prevailing before the dispute. Where those conditions are themselves disputed work shall continue in accordance with the reasonable direction of the Company, the Employees recognised skills and safe working practices.

17.8 Witness Payments;

Where a dispute is referred to the Fair Work Commission representatives and witnesses required to attend shall be regarded as being on duty and shall be paid for attending. The Company shall also pay

all reasonable travel and other expenses (such as transcript expenses) associated with such attendance.

18.0 PERSONAL/ CARERS LEAVE

An Employee (other than casual employees) who is absent from work due to personal illness or injury shall be entitled to be paid personal/carers leave subject to the following conditions: -

18.1 Accrual:

On commencement of employment and every following twelve (12) months each full-time employee shall be credited with fifteen (15) days personal/carers leave at 8 ordinary hours. A part-time Employee is entitled to accrue Personal/Carers leave on a proportional basis based on their average Ordinary hours each week compared to a full-time Employee working an average of 35 Ordinary hours per week. Fixed term employees shall receive the wages and conditions of full-time employees except that on commencement of employment that shall be credited with 9.23 hours of personal/carers leave and a further 2.30 hours for each completed week thereon.

18.2 Accumulation:

Personal/Carers leave not taken by an Employee shall accumulate without limitation. Employees may elect to cash out personal/carers leave providing the following conditions have been met:

- A minimum of 25 days of personal/carers leave will remain in accruals after the cash out
- The cash out is requested by the Employee, and agreed to by the Company, both in writing
- Personal / Carers Leave cash out will be paid as if the Employee had taken the leave.

Additionally, provision shall be made for employees on their anniversary date to salary sacrifice their next allocation of 15 days personal/carers leave into Superannuation if their accrued personal/carers leave is in excess of 15 days at that time. The Company at the request of the Employee in writing will arrange the transaction. Written requests must be received no later than one month prior to the Employee's anniversary date. Where an Employee elects to salary sacrifice a portion of personal/carers leave such leave shall not accumulate. Personal/Carers leave taken shall be deducted from the Employee's accumulated personal/carers leave. Full-time employees shall be paid for each day of personal/carers leave at 8 ordinary hours plus the average bonus.

18.3 Workers' Compensation:

An Employee shall not be entitled to paid personal/carers leave of absence for any period in respect of which the Employee is entitled to Workers' Compensation.

18.4 Notification/ Proof:

Where an absence is in excess of two (2) consecutive days a medical certificate must always be submitted. Each Employee is requested to contact their supervisor prior to being absent on personal/carers leave except in extreme circumstance. Employees are required, within twenty-four (24) hours of the commencement of such absence, to inform the Company of their inability to attend for duty; the nature of the illness or injury and the estimated duration of the absence.

Employees shall not be terminated for the temporary absence due to illness or injury if they provide the Company with a medical certificate within seventy-two (72) hours of their absence.

18.5 Payment:

Full-time employees shall be paid for each day of personal/carers leave at 8 hours at their Hourly rate plus the bonus.

18.6 Payment and Termination:

An Employee who is retrenched, whose services are terminated through operation of mineworker's pension legislation because of age, or by the Company because of ill health, or who dies and who at the date of such retrenchment, termination or death has accrued ten (10) or more days of personal/carers leave shall be granted payment on the basis of eight (8) hours at their Hourly rate for each day of personal/ carers leave accrued and not already taken.

19.0 JURY SERVICE

A full-time employee required to attend jury service during normal working hours shall be reimbursed by the Company an amount equal to the difference between the amount paid in respect of attendance for such jury service and the amount of wages which would have been received in respect of ordinary pay, had the Employee not been on jury service.

20.0 COMPASSIONATE LEAVE

20.1 In the event that an Employee's spouse or partner, child (including an adult child, adopted child, step-child, or an ex nuptial child), parent, grandparent, grandchild or sibling of the employee (or spouse of partner of the Employee):

A. Contracts or develops a personal illness that poses a serious threat to his or her life;
B. Sustains a person injury that poses a serious threat to his or her life; or
C. Dies;

The Employee shall be entitled to a maximum of two (2) days leave without loss of ordinary pay on each permissible occasion. If notified during work, the balance of the shift shall be granted and not included in the two (2) days.

20.2 Subject to approval by the Company, an Employee absent from work because of a pressing domestic nature shall be entitled to leave of one (1) day without loss of pay.

21.0 PARENTAL LEAVE

Employees are entitled to parental leave in accordance with the relevant legislation.

22.0 WEEKEND AND PUBLIC HOLIDAY

22.1 Recognised Holidays:

All recognised holidays for the purpose of this agreement are:-

- New Year's Day

- Australia Day
- Good Friday
- Easter Saturday
- Easter Sunday
- Easter Monday
- Union Picnic Day
- Anzac Day
- King's Birthday
- Labour Day
- Christmas Day
- Boxing Day

Or such other day/s as may be gazetted.

22.2 Holiday Payments:

An Employee (other than a casual Employee) not required to work a recognised public holiday, shall be paid for that day at 8 hours at their Hourly rate plus the bonus. Employees required to work on a recognised public holiday shall be paid at double time for the first 8 hours and triple time thereafter.

Casual employees will be paid triple time for all hours worked.

22.3 Saturday Work:

Subject to Clause 6.4, the rate for all Saturday work shall be at double time

22.4 Sunday Work

Subject to Clause 6.4, the rate for all Sunday work shall be at double time

22.5 Minimum Payment:

Unless continuous with work commenced the previous day or not reasonably notified: an Employee called on to work on a Saturday, Sunday or Holiday, shall be paid for at least four (4) hours at double time.

23.0 ANNUAL LEAVE

23.1 Period of Leave

Full-time Employees progressively accrue annual leave of twenty-Five (25) days (8 hours per day paid and deducted) per annum at the rate of 3.846 hours for each completed week of service. Part-time Employees progressively accrue Annual leave on a proportional basis based on their average Ordinary hours each week compared to a full-time Employee working an average of 35 Ordinary hours per week.

An Employee (other than a casual) will be additionally credited with 1.14 hours of annual leave for each Saturday, Sunday or public holiday worked.

23.2 Time of Taking Leave:

Annual Leave can be taken in single days to a maximum of five (5) days upon giving the Company one week's notice. Employees who wish to proceed on any annual leave (other than single day leave) will give their immediate supervisor no less than four (4) weeks' notice of their intention to do so. The Company shall reply to annual leave requests within 7 days of notification.

23.3 Recognised Holidays Falling During Period of Leave:

If a recognised holiday falls within an Employee's annual leave and is observed on a day which ordinarily would have been a working day for that Employee, that day will be added to the employee's annual leave accrual for each recognised holiday.

23.4 Payment on Termination of Employment:

On the termination of employment an Employee who has accrued leave will be paid for untaken days of leave at the rate of 8 hours at their Hourly rate plus 25% loading of that rate, plus the bonus.

23.5 Payment Prior to Commencement of Leave:

Each Employee shall be paid weekly for the period of annual leave unless other arrangements have been made with the Company.

23.6 Payment for Annual Leave

An Employee taking annual leave must be paid:-

The Employee's Hourly rate for 8 hours of each day taken plus a loading of 25% of that rate, plus bonus.

23.7 Taking of Leave Before Accrued:

The Company may allow annual leave to be taken by an Employee before the right thereto has accrued. Leave that has been paid in accordance with this clause will be required to be re-paid to the Company on termination of employment.

23.8 Cash Out of Annual Leave

An Employee may cash out annual leave providing the following conditions have been met:

a) The Company and employee agree to the cash out in writing;
b) The annual leave is cashed out at the same rate as if the Employee had taken the leave; and
c) The Employee has 4 weeks annual leave remaining in their accruals.

24.0 LONG SERVICE LEAVE

An Employee shall accrue long service leave in accordance with the Federal Legislation (as amended) currently at the rate of thirteen (13) weeks for each eight (8) years of continuous service in the Coal Mining Industry.

24.1 Time of Taking

Long Service leave may be taken at any time by an Employee who has become due for such leave provided that:

I. An Employee seeking to take long service leaver shall give four (4) weeks' notice of their intention to their immediate supervisor on the form provided;
II. The operations which the Employee works will not, in the opinion of the Company, be affected by the granting of the leave at that time;
III. An Employee who has accumulated thirteen (13) weeks of entitlement may, with the consent of the Company, take such thirteen (13) weeks;
IV. Following on the first entitlement of long service leave, and whilst the employment remains continuous, an Employee shall be entitled to take further long service leave for each sixty four (64) weeks of service;
V. Long service leave shall not be taken in periods of less than two weeks

24.2 Long Service Leave Payment:

On or before the last working day prior to the commencement of long service leave, an Employee shall be paid 40 hours at their Hourly rate, plus bonus for each week of leave taken.

24.3 Recognised Public Holiday Falling During Period of Leave:

If a recognised holiday falls within the Employee's Long Service Leave, and it is observed on a day which ordinarily would have been a working day for that Employee, there shall be added to the period of Long Service Leave one day, being in ordinary working day, for each such recognised holiday.

24.4 Payment on Termination:

i. Where the services of an Employee are terminated in accordance with Mineworker's Pension Legalisation because of age, or by the Company because of ill health, or in the case of death, such Employee shall be granted payment (40 hours at their Hourly rate, plus bonus for each week of leave taken) for any long service leave accumulated and not already taken.
ii. On Termination of employment an Employee who at the date of such termination has accumulated a minimum of thirteen (13) weeks of entitlement shall be granted payment at 40 hours at their Hourly rate, plus bonus for each week of leave taken for any long service leave accumulated and not already taken. Provided that where special circumstances exist, the Company upon application to Fair Work Commission may be granted relief from the obligation herein imposed upon such terms as Fair Work Commission may deem just and expedient.

25.0 FAMILY AND DOMESTIC VIOLENCE LEAVE

Employees are entitled to Family and Domestic Violence Leave in accordance with the Act.

26.0 OTHER LEAVE

All other leave is provided in line with the NES.

27.0 TRAVEL AND ACCOMMODATION

There are four (4) main coal mining districts in NSW:

- Northern;
- Southern;
- The Hunter Valley:
- Western

Travel payments will not apply when employees travel to any mine within the district they reside in (home district)

27.1 Travel Allowances will only be paid when Employees are required to work outside their home district or for emergency work.

Travel to emergency work within an Employee's home district will attract $50.00 each way travel allowance.

Travel payments will apply each way as per the following table. The Company will determine payments for travel to locations not included in this table based on the calculations below.

Region – Hunter Valley	**Travel Allowance**
Hunter Valley (Emergency)	$55.00
Northern	$275.00
Southern	$198.00
Western	$220.00
Region – Western	**Travel Allowance**
Western (Emergency)	$55.00
Northern	$220.00
Southern	$220.00
Hunter Valley	$220.00
Region – Northern	**Travel Allowance**
Northern (Emergency)	$55.00
Hunter Valley	$275.00
Southern	$385.00
Western	$220.00
Region – Southern	**Travel Allowance**
Southern (Emergency)	$55.00
Hunter Valley	$198.00
Northern	$385.00
Western	$220.00

The above travel payments will be fixed for the life of the agreement.

Travel payments for out of the district work are not applicable when the Company provides accommodation and the accommodation is not used.

Where the Company has provided a Company vehicle, travel payments will not apply.

The Company shall, if requested by an Employee (other than a casual or fixed term Employee) facilitate the use of a Motor Vehicle Novated Lease.

27.2 Accommodation

Employees will not be entitled to accommodation allowances when working within the district they reside in. However, Employees may be provided with overnight accommodation for the purpose of fatigue management.

a) Within an Employees Home District

When accommodation is required for fatigue management, single room sleeping accommodation may be provided by the Company.

b) Other Areas

Employees engaged in work outside of their home district, receiving approval for overnight accommodation will be entitled to accommodation and meal allowances. The Company will provide single room sleeping accommodation.

Employees will not be required to relocate from the Hunter Valley district. All Employees will be requested to respond to Emergency work at any place of the Company's operation, to meet peak workloads.

c) Away Allowance

If an Employee is called upon to work on short term emergency work, not at their regularly scheduled place of work, outside their district and accommodation is provided and used, a $80 Away Allowance will be paid per shift.

27.3 Where accommodation excluded meals, the Company shall provide an after tax Meal Allowance of $100.00 per day

27.4 Gunnedah Basin Allowance

Employees who are not local to the Gunnedah basin and are assigned to work within the Gunnedah basin will be provided a flat allowance of $100 for each shift worked.

27.5 Interstate Travel

The Company and Employee may agree for the Employee to travel interstate to undertake work for Wilson Mining. An Employee may not unreasonably withhold their agreement.

All travel is paid at their Hourly rate. Standard payment for a one way trip Newcastle / Mackay is seven (7) hours. An employee may return home early under exceptional circumstances which are satisfactory to the Company, otherwise the employee will be required to pay for the cost of return flights. An additional eight (8) hours will be paid at their Hourly rate for travel on a public holiday.

Casual Employees will receive a minimum of 24 hours per week when working interstate.

The Company shall attempt to return the employee home after a period of approximately four (4) weeks. All Employees returning home will be on unpaid days off for seven (7) days, unless agreement is reached by the Company and the Employee.

28.0 RETRENCHMENT PAY

28.1 Should there be a requirement to reduce manning levels voluntary redundancy arrangements will be offered at first instance. All expressions of interest will be considered by the Company based on individual merits and in the best interest of the business. Registering an expression of interest is not a guarantee that the offer of voluntary redundancy will be accepted.

28.2 Should retrenchments occur, it will be on the basis of 'last on, first off' according to the length of service at Wilson Mining Services Pty Ltd, providing that where separate streams and specialist skills of Employees exist it will apply to the appropriate stream except where another mechanism is agreed between the parties to this Agreement.

The relevant streams are as follows:

- Operations Supervisors
- Trade Qualified Fitters
- Mine Workers

28.3 Redundancy based on seniority will be maintained for the life of this Agreement. The Parties agree to negotiate a change in this process for the next Agreement.

28.4 Employees (other than fixed term or casual Employees) retrenched at Wilson Mining Services Pty Ltd will receive 4 weeks' notice of impending retrenchment.

28.5 Employees (other than fixed term or casual Employees) will receive a minimum of three (3) weeks' pay (at the rate of Ordinary hours at their Hourly rate) per year of service as retrenchment pay for each completed year of service at Wilson Mining Services Pty Ltd, with a minimum payment of two weeks for less than one completed years' service.

28.6 Accrued personal/carers leave at the time of retrenchment will be paid at the rate of 8 ordinary hours at the Hourly rate, if the Employee has a minimum of 70 hours of personal leave accrued at the time of retrenchment.

28.7 Accrued annual leave at the time of retrenchment will be paid at the rate of 8 ordinary hours at the Hourly rate plus 25% loading of that rate plus any bonus.

29.0 WORKERS COMPENSATION

An Employee who is injured during the course of his/her employment shall be entitled to payment in accordance with the Worker's Compensation Act 1987 (as amended) as it related to the Coal Mining Industry.

30.0 ACCIDENT PAY

30.1 General:

If an Employee is in receipt of weekly payments under the provisions of the *Workers Compensation Act 1987* (NSW) ["WCA"] the Company shall pay accident pay within the meaning of the WCA until the incapacity ceases or until the expiration of a period of seventy-eight (78) weeks of incapacity for

work whichever is sooner, even if the Company terminates the Employee's employment within the period.

30.3 Meaning of Accident Pay:

For the initial period of thirty-nine (39) weeks of incapacity for work, the Employee will be paid the difference between the weekly amount of compensation paid under the WCA and the amount the Employee would have been received on forty (40) hours at the Hourly rate including shift loading and bonus at the time of injury.

For a further period of thirty-nine (39) weeks of incapacity for work, the Employee will be paid the difference between the weekly amount of compensation paid under the WCA and the weekly amount that would have been received on forty (40) hours at the Hourly rate of the incapacitated Employee at the date of the injury.

30.4 Redemptions

In the event that an Employee receives a lump sum in redemption of weekly payments under the WCA, the liability of the Company to pay accident pay will cease from the date of such redemption.

30.5 Damages Independent of the Act:

Where the Employee recovers damages from the Company or from a third party in respect of the injury, independently of the WCA, such Employee will be liable to repay to the Company the amount of accident pay which the Company has paid under this clause, and the Employee will not then be entitled to any further accident pay thereafter.

30.6 Calculation of period and pro rata payment

The first day of the 78 week entitlement to accident pay is the first day of incapacity for work, which may be subsequent to the date of injury.

Intermittent absences arising from the one injury are to be cumulative in the assessment of the 78 week entitlement, including part weeks or partial capacity where accident pay will be paid on a pro rata basis. e.g. an Employee performing half of their rostered hours for 2 weeks, equates to 1 week of the 78-week entitlement.

For the purposes of this clause, periods of incapacity for work do not include time where the Employee has returned to work on modified, restricted or alternative duties and there is no loss of earnings.

For the avoidance of doubt, there will be no deduction from an Employee's 78 week Accident Pay entitlement during any week where the Employee is back at work on unrestricted duties (i.e. where there is no incapacity for work related to the injury).

30.6 Agreement of the parties

The parties agree that this clause is intended to clarify and reflect the long-standing and pre-existing arrangements the Company has, and as applied by Coal Services as the Company's insurer.

31.0 SUPERANNUATION

The Company contributions will be made in accordance with Wilson Mining obligations under the *Superannuation Guarantee Act 1992*.

Contributions will be made to

1. The stapled superannuation fund applying to the Employee; or
2. A complying superannuation fund nominated by the Employee; or
3. The TEAM Super Fund (the default fund) where the Employee has elected not to exercise choice of fund and no stapled fund exists for the Employee.

Contributions made by the Company are made in satisfaction of any obligation the Company has to make or forward any superannuation payments on the Employee's behalf including any obligations under the *Superannuation Guarantee Act 1992*.

Any amounts salary sacrificed by Employees will not be used by the Company to reduce its superannuation ordinary time earnings calculation for individual Employees.

Where the Employee salary sacrifices contributions will always be made on the basis of the Employee's pre-salary sacrificed earnings.

The parties agree that rostered overtime that forms part of the Employee's regular roster will be included in ordinary time earnings for the purposes of calculating Superannuation.

32.0 ABSENT WITHOUT LEAVE

The absence of any Employee from work for a continuous period exceeding five (5) working days without the consent of the Company will be prima facie evidence that the Employee has abandoned employment and their services will be terminated. The Company will make all reasonable attempts to contact the Employee prior to terminating their employment.

33.0 OCCUPATIONAL HEALTH AND SAFETY

The parties to this Agreement recognise the need to establish Occupational Health and Safety to administer occupational health and safety at their operation pursuant to current occupational health and safety legislation.

Payment for an Employee to attend a renewing medical will be four (4) hours at the Hourly rate.

An Employee will receive payment for the time of attendance only for pre-requisite and Induction Drug and Alcohol tests.

34.0 DRUG AND ALCOHOL POLICY

The Company is committed to creating an environment where people recognise the health and safety risks of misusing alcohol and drugs. To achieve this aim the Company has adopted an Alcohol and Drug Policy that will apply to all employees. Incorporated in the Policy is a requirement that employees participate in and abide by the alcohol and drug testing policy at the mine at which work is being performed. A copy of the complete Policy can be obtained from the Company's office.

35.0 CONSULTATION

35.1 This term applies if the employer:

a) has made a definite decision to introduce a major change to production, program, organisation, structure or technology that is likely to have a significant effect on the employees to which the enterprise agreement applies; or

b) proposes to introduce a change to the regular roster or ordinary hours of work of employees.

Consultation in relation to major workplace change

35.2 For a major change referred to in clause 35.1 a):

a) the Company must notify the relevant Employees of the decision to introduce the major change; and

b) subclauses 35.3 to 35.9 apply.

35.3 The relevant Employee or Employees may advise the Company that a person or employee organisation is their representative for the purposes of the procedures in this clause in relation to major workplace change.

35.4 If:

a) a relevant Employee, or the relevant Employees advise the Company that a person or employee organisation is their representative for the purposes of consultation; and

b) the Employee or Employees advise the Company of the identity of the representative;

The Company must recognise the representative.

35.5 The Company must notify the relevant Employees and their representatives (if any) of the decision to introduce a change.

35.6 As soon as practicable after making its decision, the Company must:

a) Consult with the relevant Employees and their representatives (if any) include by discussing with them:

   I. the introduction of the change; and

   II. the effect the change is likely to have on the Employees; and

   III. measures to avoid or reduce any adverse effect of the change on the Employees; and

b) for the purposes of the consultation—provide, in writing, to the relevant Employees and their representatives (if any):

   I. all relevant information about the change including the nature of the change proposed; and

   II. the reasons or justification for the change; and

   III. information about the expected effects of the change on the Employees; and

   IV. any other matters likely to affect the Employees.

35.7 However, the Company is not required to disclose confidential or commercially sensitive information to the relevant Employees or their representatives (if any).

35.8 The Company must give prompt and genuine consideration to matters raised about the major change by the relevant Employees or their representatives (if any).

35.9 The Company will take reasonable steps to communicate the outcome of the consultation process including the consideration that was given to matters raised about the major workplace change by the relevant Employees and their representatives (if any).

35.10 If a term in this agreement provides for a major change to production, program, organisation, structure or technology in relation to the enterprise of the Company, the requirements set out in paragraph clauses 35.2 to 35.9 are taken not to apply.

35.11 In this term, a major change is "likely to have a significant effect on Employees" if it results in:

a) the termination of the employment of Employees; or
b) major change to the composition, operation or size of the Company's workforce or to the skills required of Employees; or
c) the loss of, or reduction in, job or promotion opportunities; or
d) the loss of, reduction in, job tenure or job security; or
e) the alteration of hours of work; or
f) the need to for Employees to be retrained or transferred to other work or locations; or
g) the restructuring of jobs.

Consultation in relation to change to regular roster or ordinary hours of work

35.12 For a change referred to in paragraph 35.1 b):

a) the Company must notify the relevant Employees and their representatives (if any) in writing of the proposed change; and
b) subclauses 35.13 to 35.18 apply.

35.13 The relevant Employee or Employees may advise the Company that a person or employee organisation is their representative for the purposes of the procedures in this clause in relation to changes to regular rosters or ordinary hours of work.

35.14 If:

a) a relevant Employee, or the relevant Employees, advise the Company that a person or employee organisation is their representatives for the purposes of consultation; and
b) the Employee or Employees advise the Company of the identity of the representative;

The Company must recognise the representative.

35.15 As soon as practicable after proposing to introduce the change, the Company must:

a) consult with the relevant Employees and their representative (if any) about the introduction of the change, including by discussing the change with them; and
b) for the purposes of the consultation—provide to the relevant Employees and their representatives (if any):

I. all relevant information about the change, including the nature and expected duration of the change; and
II. information about what the Company reasonably believes will be the effects of the change on the Employees (including any effect on the Employee's remuneration); and
III. information about any other matters that the Company reasonably believes are likely to affect the Employees; and

c) invite the relevant Employees and their representatives (if any) to give their views about the impact of the change (including any impact in relation to their family or caring responsibilities).

35.16 However, the Company is not required to disclose confidential or commercially sensitive information to the relevant Employees and their representatives (if any).

35.17 The Company must give prompt and genuine consideration to matters raised about the change by the relevant Employees and their representatives (if any).

35.18 The Company will take reasonable steps to communicate the outcome of the consultation process including the consideration that was given to matters raised about the change to the regular roster or ordinary hours of work of Employees by the relevant Employees and their representatives (if any).

35.19 In this term:
relevant Employees means the Employees who may be affected by a change referred to in subclause (35.1).

36.0 INDIVIDUAL FLEXIBILITY ARRANGEMENT

36.1 The Company and Employee covered by this enterprise agreement may agree to make an individual flexibility arrangement to vary the effect of terms of the agreement if:

a) the agreement deals with 1 or more of the following matters:
   I. arrangements about when work is performed;
   II. overtime rates;
   III. penalty rates;
   IV. allowances;
   V. leave loading; and

b) the arrangement meets the genuine needs of the Company and the Employee in relation to the matter or matters it deals with; and
c) the arrangement is genuinely agreed to by the Company and Employee, without coercion or duress.

36.2 An individual flexibility arrangement may only be made after the individual employee has commenced employment with the Company.

36.3 If the Company wishes to initiate the making of an individual flexibility agreement it must

a) Give the Employee a written proposal; and
b) if the Company is aware that the Employee has, or should reasonable be aware that the Employee may have, limited understanding of written English, take reasonable steps to ensure that the Employee understands the proposal.

36.4 If the Company proposes to enter into an individual flexibility arrangement with an Employee, the Company must meet with the Employee to discuss the proposal prior to entering the individual flexibility arrangement if the Employee requests such a meeting.

36.5 The Company must ensure that the terms of the individual flexibility arrangement:

a) are about permitted matters under section 172 of the *Fair Work Act 2009* ; and
b) are not unlawful terms under section 194 of the *Fair Work Act 2009* ; and
c) result in the Employee being better off overall than the Employee would be if no individual flexibility arrangement was agreed to.

36.6 The Company must ensure that the individual flexibility arrangement:

a) is in writing; and
b) includes the name of the Company and Employee; and
c) is signed by the Company and Employee and if the Employee is under 18 years of age, signed by a parent or guardian of the Employee; and
d) includes details of:

I. The terms of the agreement that will be varied by the arrangement;
II. How the arrangement will vary the effect of the terms; and
III. How the Employee will be better off overall in relation to the terms and conditions of his or her employment as a result of the arrangement; and

e) states the day on which the arrangement commences; and
f) describes how the individual flexibility arrangement can be terminated.

36.7 The Company must give the Employee a copy of the individual flexibility arrangement within 14 days after it is agreed to.

36.8 The Company or Employee may terminate the individual flexibility arrangement:

a) At any time, by agreement in writing between the Company and the Employee; or
b) By the Company or the Employee giving 28 days written notice to the other party.

36.9 An individual flexibility arrangement terminated in accordance with clause 36.8(b) ceases to have effect at the end of the period of notice required under this clause.

36.10 The Company and the Employee may use clause 17 Disputes Procedure in the Agreement to deal with disputes that may arise concerning the matters dealt with in the individual flexibility arrangement.

37.0 SIGNATURES TO THE AGREEMENT

Signed for the Employee (By a representative)

Signature: _____ Date: 3-9-26

Print Name: PATRICK SEVLEAN

Address: 32 CHARLTON ST BELLBIRD 2325

NSW

Authority: _____ Employee Representative / Coal Mine Worker _____

In the presence of:

Signature: _____ Date: 3-9-26

(witness)

Print Name: BRADLEY WINSLADE

Signed for Wilson Mining Services Pty Ltd

Signature: _____ Date: 4/9/2026

Print Name: Dean Brown

Address: 16 Metro Crt Gateshead NSW 2290

Authority: Regional General Manager

In the presence of:

Signature: _____ Date: 4/9/2026

(witness)

Print Name: Group Manager Employee Relations

IN THE FAIR WORK COMMISSION
Section 185 – Application for approval of a single enterprise agreement

FWC Matter No: AG2026/2556

Applicant: Wilson Mining Services Pty Ltd

Undertakings – section 190

I, Shaun McKenzie, Group Manager Employee Relations for the Mastermyne Group, have the authority given to me by Wilson Mining Services Pty Ltd to give the following undertaking with respect to Clause 9.8 of the Mastermyne Strata Consolidation NSW Enterprise Agreement 2026 (**the Agreement**).

> In Clause 9.8 of the Agreement reconciliations in each existing or new roster shall be undertaken to assess whether or not the Employee would receive less pay in that roster cycle than they would have received under both the Award and under the Agreement had they not been paid an aggregate hourly rate. For the avoidance of doubt, this will not result in double counting.

This undertaking is provided in response to the issues raised by the Fair Work Commission in the application before the Fair Work Commission.



Signature

02/10/2026

Date

mastermyne
stronger values. greater results.